



File No.: EXP202317284

RESOLUTION OF FILE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On October 20, 2023, a complaint was filed with registration number REGAGE23e00071038582 before the Spanish Agency for Data Protection against VODAFONE SERVICIOS, S.L.U. with NIF B87539284 (hereinafter, the complained party). The reasons for the complaint are as follows:

The complainant states that their personal data is registered with Experian at the request of the complained telecommunications operator, without having been previously informed or required to pay the debt. Along with the complaint, they provide a copy of the Experian report regarding the inclusion of their personal data at the request of the complained party.

Along with the complaint, the following documentation is submitted:

- Letter from Experian dated 07/20/2023 addressed to the complainant stating the following:

"In response to your letter received in our offices on 07/14/2023 in which you request the cancellation of the data associated with the identifier ***IDENTIFICADOR.1, after carrying out the necessary checks, we inform you of the following:

- The cancellation has been processed in our BADEXCUG file for the operations indicated below:

Operation number: ***NÚMERO.1 Entity: TELEFONICA DE ESPAÑA

Operation number: ***NÚMERO.2 Entity: VODAFONE SERVICIOS, SLU

Operation number: ***NÚMERO.3 Entity: VODAFONE SERVICIOS, SLU

- Letter from the complainant to Vodafone dated 10/20/2023 requesting the cancellation of personal data in which they state the following:

"I wish to express my disagreement and lack of knowledge regarding the alleged debt associated with my name. Furthermore, the addresses and details related to this debt do not correspond to my personal information. This has caused me great concern and harm, as this situation could negatively affect my credit history and financial reputation. Therefore, I request the immediate cancellation and removal of my personal data from your debtors file. Additionally, I inform you that I have filed a complaint with the Spanish Agency for Data Protection (AEPD) for this improper inclusion. Attached to this letter are my documents of complaint to the AEPD for your information."

- Letter from Experian dated 10/20/2023 addressed to the complainant stating the following:

"In response to your letter received in our offices on 10/18/2023 in which you request access to the data associated with the identifier ***IDENTIFICADOR.1, after carrying out the necessary checks, we inform you of the following:

- The data registered in our BADEXCUG file are:

Name: A.A.A.

Address: ***DIRECCIÓN.1

Reporting entity: VODAFONE SERVICIOS SLU

Operation No.: ***NÚMERO.2

Unpaid amount: (...)

Financed product: Telecommunications

Intervening type: Holder

Payment status: Over 180 days

Unpaid installments: 0

Financed amount: 0.00

Maximum unpaid amount: (...)

Unpaid at registration: (...)

Registration date: 10/08/2023

Maximum unpaid amount date: 10/15/2023

Date of first non-payment: 07/25/2019
Date of last update: 10/15/2023
Name: A.A.A.
Address: ***DIRECCIÓN.2
Reporting entity: VODAFONE SERVICIOS SLU
Operation No.: ***NÚMERO.3
Unpaid amount: (...)
Financed product: Telecommunications
Intervening type: Holder
Payment status: Over 180 days
Unpaid installments: 0
Financed amount: 0.00
Maximum unpaid amount: (...)
Unpaid at registration: (...)
Registration date: 10/08/2023
Maximum unpaid amount date: 10/15/2023
Date of first non-payment: 01/31/2020
Date of last update: 10/15/2023"

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the aforementioned complaint was forwarded to the complained party, so that they could proceed with its analysis and inform this Agency within one month of the

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actions taken to comply with the requirements set forth in the data protection regulations.

The transfer, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on 5/12/2023 as evidenced by the acknowledgment of receipt in the file.

On 17/01/2024, this Agency received a response letter providing the following documentation:

- Prior payment request, includes the letters sent to the claimant dated 21/08/2023 regarding the two debts (...) and (...) and also the delivery receipts to the postal service for the shipments.
- Letter to the claimant dated 16/01/2024 indicating the following:

"We are contacting you regarding your claim, which has been forwarded to us by the Spanish Agency for Data Protection, hereinafter AEPD, in relation to the information request with number EXP202317284.

We inform you that, once the appropriate checks have been carried out and the described facts analyzed, we have confirmed that you currently have two debts associated with your customer record, specifically:

- A debt of (...) euros, associated with the billing address at ***ADDRESS.1, generated as a result of the fees and consumption derived from the associated services of (i) Internet and Fiber, (ii) the mobile phone lines ***PHONE.1 and ***PHONE.2, (iii) the landline ***PHONE.3, and (iv) the financing of two financed devices: iPhone XS MAX 256Gb Gray and iPhone XS MAX 64Gb Gold. Additionally, this debt includes the return of a bank receipt of 20 euros.
- A debt of (...) euros, associated with the billing address at ***ADDRESS.2, generated as a result of the fees and consumption of the associated services of (i) Internet and Fiber, (ii) the line ***PHONE.4, and (iii) the return of a bank receipt of 20 euros.

It has been verified that these amounts have not been paid by you, constituting a monetary debt, determined, liquid, overdue, and enforceable, which was the reason for your data being included in the negative financial solvency files that collaborate with Vodafone.

However, as a preventive measure and as a demonstration of Vodafone's good practices and willingness, your identifying data was removed from the financial solvency file as of October 20, 2023. Furthermore, Vodafone informs you that your personal data will be processed during the legal prescription period of the debt, or until the same is duly settled, for the purpose of collecting it, in accordance with the legal obligations that pertain to us."

- Letter from the lawyer of the responding party dated 16/01/2024, in which she states, among other things, the following:

"After analyzing the claim and investigating what happened, Vodafone has been able to verify that Mr. A.A.A., a former Vodafone customer, had a series of active services, specifically, the landline ***PHONE.3, the mobile lines ***PHONE.1 and ***PHONE.2, as well as an Internet and Fiber service, in addition to two financed devices: iPhone XS MAX 256Gb Gray and iPhone XS MAX 64Gb Gold. All these services, which also include the expenses generated by the return of a bank receipt, have generated a total debt of (...)€ from April 2019 to October 2020, associated with the billing address at Calle ***ADDRESS.1.

Additionally, the claimant's customer record shows a second debt of (...)€ generated during December 2019 and January 2020 for the active Internet and Fiber services installed at ***ADDRESS.2, the line ***PHONE.4, as well as for the bank return of one of the bank receipts. In this regard, Document number 2 is attached, which includes the invoices corresponding to that period, which will be sent by postal mail to this Agency due to technical limitations.

The existence of this debt was the reason for the inclusion of the claimant's identifying data in the negative financial solvency files with which Vodafone collaborates, after having requested payment of the same from Mr. A.A.A. My client has verified with Experian that a payment request was sent for both debts. In this regard, Document number 3 is attached, which includes the prior payment requests for both debts, sent to the previously indicated addresses, as well as the delivery receipt from the transport company Correos, which provides the supporting document for having processed the shipment of a series of prior payment requests, including those that are the subject of this claim."

THIRD: On January 20, 2024, in accordance with Article 65 of the LOPDGDD, the claim submitted was admitted for processing.

FOURTH: According to the report collected from the AXESOR tool, the entity VODAFONE SERVICIOS, S.L.U. is a group subsidiary established in 2016, with a turnover of (...) euros and (...) employees in 2023.

LEGAL GROUNDS

I

Competence

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In accordance with the functions conferred upon each supervisory authority by Article 57.1 a), f), and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative actions.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In the present case, in accordance with the provisions of Article 4.1 of the GDPR, there is evidence of the processing of personal data by including the personal data of the complaining party in the solvency file.

Likewise, the responding party carries out this activity in its capacity as data controller, as it is the one who determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR: "data controller" or "controller": the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing.

III

Obligation Breached. Lawfulness of Processing

Regarding the lawfulness of the processing of personal data, Article 6.1 of the GDPR establishes the following:

“1. Processing shall be lawful only if at least one of the following applies:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in point f) of the first paragraph shall not apply to processing carried out by public authorities in the exercise of their functions.”

In the same vein, Article 20 of the LOPDGDD indicates the following:

Article 20. Credit Information Systems

1. Unless proven otherwise, the processing of personal data relating to the non-fulfillment of monetary, financial, or credit obligations by common credit information systems shall be presumed lawful when the following requirements are met:

- c) That the creditor has informed the affected party in the contract or at the time of requesting payment about the possibility of inclusion in such systems, indicating those in which they participate.

In the present case, the personal data of the complaining party would have been included in the solvency file at the request of the responding party without prior notification demanding the existing debt and warning of its inclusion in that file, which means that the processing would lack the required lawfulness as stated in the transcribed article.

The complaining party requested the cancellation of the data from the data controller Experian on 14/07/2023, to which Experian responded on 20/07/2023. After conducting the relevant checks, they communicated that the cancellation had been carried out in their BADEXCUG file for the operations indicated below:

Operation number: ***NUMBER.2 Vodafone.

On 20/10/2023, Experian sent a letter addressed to the complaining party, indicating that in response to their letter received in their offices on 18/10/2023, in which they request access to the data associated with identifier ***IDENTIFIER.1, after conducting the relevant checks, they communicated that the data recorded in their BADEXCUG file would be the two debts already indicated of (...) and (...) euros.

On 20/10/2023, the complaining party sent a letter to Vodafone requesting the immediate cancellation and deletion of their personal data from their debtors file. The responding party has stated that it has been confirmed that the data of the complaining party was included in the BADEXCUG credit information system, of the company EXPERIAN at the request of the responding party. On 16/01/2024, the responding party informed that the data of the complaining party is no longer registered in the debtors file since 20/10/2023.

Regarding the notice of inclusion in the solvency file, the responding party has stated that it concerns a lawful, overdue, and enforceable debt that was generated from April 2019 to October 2020 for the amount of (...)€.

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second debt of (...)€ generated during the months of December 2019 and January 2020, both for different services, attaching the corresponding invoices for that period.

The existence of this debt was the reason for the inclusion of the identifying data of the claimant in the negative solvency files with which Vodafone collaborates, and it indicates that payment was requested from the claimant.

The responding party states that it has verified with Experian, its collaborator, that a payment request for both debts was sent on 21/08/2023, sent to two addresses listed for the claimant, providing the delivery receipt to the company Correos, a document proving that a series of prior payment requests were processed and that the ones subject to this claim are included in that batch, being mass communications, sent by ordinary mail.

In this regard, the responding party claims that this communication was made through Correos, although it has not proven the delivery of the same, the acknowledgment of receipt, nor its non-return through a certificate from the postal operator.

Therefore, the described facts could constitute a violation of Article 6.1 of the GDPR, due to the alleged unlawfulness of the processing, since the notification of the inclusion of personal data in solvency files must be able to be proven by the responding entity, which can provide the following documents:

- copy of the letter communicating the inclusion;
- certificate from an external company to which the generation, mailing, and provision of the letter in the post or courier service has been entrusted (traceability), as well as the proof from the post or courier service of having received the letter;
- and certificate from an external company of non-return of the letter.

In this case, the responding party, in its response to the information request made by the AEPD, has not been able to prove these aspects, since the mere sending of the payment request by postal means does not prove its receipt, so the mandatory payment request prior to inclusion in the delinquent file cannot be considered made. However, the responding party states in its response to the transfer that, as a precautionary measure and as a demonstration of good practice and willingness, the identifying data of the responding party were removed from the solvency file as of October 20, 2023.

Based on the above, Article 65.6 of the LOPDGDD could be applied since the responding party has taken measures to remove the claimant's data from credit information systems, so that, although it does not prove that the letter was not returned, in any case, it has proceeded with the removal.

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Conclusion

Therefore, based on the information provided in the previous paragraphs, no evidence has been found to substantiate the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection.

All of this is without prejudice to any subsequent actions that this Agency may carry out, exercising the investigative and corrective powers it holds.

Thus, as it has not been possible to substantiate the infringement as indicated, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO ARCHIVE the present proceedings.

SECOND: TO NOTIFY this resolution to VODAFONE SERVICIOS, S.L.U. and to the claimant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in

accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

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